

1 Q. TELL US ABOUT HOW YOU DID THAT EXAMINATION IN GENERAL.

2 A. WELL, THE MAIN EMPHASIS WAS LOOKING AT THE HARD DRIVES OF
3 THE COMPUTER. WE NEEDED TO MAKE WHAT'S CALLED A MIRROR IMAGE
4 OF THE HARD DRIVES. IT TOOK US A WHILE TO BE ABLE TO CONFIGURE
5 THE COMPUTERS WE HAD IN ORDER TO ACCESS THE TWO LARGE DRIVES
6 THAT WERE ON THE DEFENDANT'S COMPUTER. AND WE WERE ABLE TO
7 MAKE A BACKUP -- A MIRROR IMAGE BACKUP ONTO A TAPE CARTRIDGE
8 AND SUBSEQUENTLY RESTORE THAT TO TWO HARD DRIVES THAT WE
9 PURCHASED.

10 Q. DID YOU THEN LEAVE THE ORIGINAL IN EVIDENCE?

11 A. YES, WE DID.

12 Q. SO IT'S STILL IN THE SAME STATE THAT IT WAS FOUND?

13 A. YES, IT IS.

14 Q. AND THEN YOU STARTED EXAMINING THE COPIES; IS THAT CORRECT?

15 A. THAT'S CORRECT.

16 Q. DID YOU FIND AN FTP LOG IN THE DEFENDANT'S COMPUTER?

17 A. YES, I DID.

18 Q. DID YOU FIND OTHER DOCUMENTS RELATED TO FTP?

19 A. YES, I DID.

20 Q. LET'S TALK INITIALLY ABOUT THIS FTP LOG, WHERE DID YOU FIND
21 IT?

22 A. THAT WAS IN THE WAREZ DIRECTORY, OR I SHOULD SAY THE
23 WAR-FTP DIRECTORY, WHICH IS A SUBDIRECTORY OF THE WAREZ,
24 W-A-R-E-Z, DIRECTORY ON BOTH OF THE DRIVES. IT WAS ON BOTH THE
25 "C" DRIVE AND THE "D" DRIVE.

1 Q. I'M GOING TO SHOW YOU WHAT IS MARKED AS GOVERNMENT'S 114.

2 DO YOU RECOGNIZE THAT?

3 A. YES, I DO.

4 Q. AND WHAT IS IT?

5 A. THAT'S A COPY OF THE LOG FILE FROM THE WAR-FTP PROGRAM. IT
6 WAS IN A TEXT FORMAT. I TOOK THAT TEXT FORMAT, PUT IT IN WORD
7 FORMAT, PUT A HEADER ON IT SO WE WOULD KNOW WHAT IT WAS, AND
8 ALSO PUT PAGE NUMBERING ON IT.

9 Q. DID YOU CHANGE ANY OF THE INFORMATION CONTAINED IN IT?

10 A. NO, I DID NOT.

11 Q. AND SO THEN OTHER THAN THE HEADER AND THE PAGE NUMBERS THAT
12 YOU JUST TOLD US ABOUT, IS ANY OF THE OTHER INFORMATION CHANGED
13 IN THERE?

14 A. NO, IT'S NOT.

15 Q. THE GOVERNMENT MOVES 114 INTO EVIDENCE.

16 MR. BRANIFF: NO OBJECTION.

17 THE COURT: 114 IS RECEIVED.

18 (GOVERNMENT'S EXHIBIT NO. 114 RECEIVED.)

19 BY MS. MAJOR:

20 Q. WHEN YOU FOUND THIS WAR-FTP LOG, WERE YOU FAMILIAR IN
21 GENERAL WITH FTP FILE TRANSFER PROTOCOL?

22 A. AT THE TIME I KNEW OF IT, BUT I WASN'T FAMILIAR WITH THE
23 DETAILS OF HOW IT FUNCTIONED. THERE WAS A PROTOCOL THAT'S USED
24 BETWEEN COMPUTERS TO TRANSFER FILES.

25 Q. AND DID YOU SUBSEQUENTLY OBTAIN A COPY OF WAR-FTP AND USE

USA V. PAUL BLAZEIVICH, CASE NO. 99CR0471

JOHNSON - DIRECT EXAM BY MS. MAJOR, 1-21-00

1 IT?

2 A. YES, I HAVE.

3 Q. ARE YOU FAMILIAR NOW WITH HOW WAR-FTP WORKS?

4 A. YES, I AM.

5 Q. DID YOU PREPARE A DEMONSTRATION TO HELP DEMONSTRATE HOW
6 WAR-FTP WORKS?

7 A. YES.

8 (GOVERNMENT'S EXHIBIT NO. 290 IDENTIFIED.)

9 BY MS. MAJOR:

10 Q. IF YOU COULD TELL US FIRST THESE SLIDES THAT ARE THESE
11 SCREENS THAT YOU DEVELOPED, WHAT DOES IT SHOW IN GENERAL, THE
12 PACKET THAT WE'RE GOING TO GO THROUGH?

13 A. IN GENERAL THIS PACKET SHOWS YOU THE SCREEN PRINTS FROM AN
14 EXECUTION OF THE WAR-FTP PROGRAM, WHICH I SET UP AS A USER, AND
15 THE DIRECTORY ACCESS FOR THE USER AND THEN DID A SAMPLE FILE
16 TRANSFER.

17 Q. OKAY. IS THIS THE FIRST SCREEN THEN THAT YOU SEE?

18 A. YES. ACTUALLY THIS IS THE SECOND SCREEN WHEN YOU START THE
19 PROGRAM. THE FIRST SCREEN IS A LITTLE TITLE SCREEN INDICATING
20 THE NAME OF THE PROGRAM. AND THEN I MAXIMIZE THIS TO GET THE
21 BEST CLARITY FOR VIEWING.

22 Q. ALL RIGHT. AND THERE'S SOME WORDS DOWN HERE, THEY'RE HARD
23 TO READ. BUT WHAT IS IT THAT YOU SEE DOWN HERE?

24 A. THESE LINES IN THIS BOX REPRESENT A LOGGING OF ACTIVITY FOR
25 THAT PARTICULAR EXECUTION OF THE PROGRAM. THESE LINES ALSO GET

1 PUT INTO THE LOG FILE THAT'S CREATED.

2 Q. SO THIS RECORDS -- YOU SEE THIS DOWN HERE, AND IT ALSO
3 GOES INTO THE LOG FILE?

4 A. THAT'S CORRECT.

5 Q. AND IT SORT OF COMMENTS ON WHAT'S BEING DONE?

6 A. EXACTLY.

7 Q. OKAY. AND IF YOU WERE GOING TO START THIS PROGRAM, ARE YOU
8 FIRST PRESENTED WITH SOME OPTIONS?

9 A. YES. YOU'LL WANT TO SELECT THE OPTIONS IN ORDER TO
10 CONFIGURE THE PROGRAM.

11 Q. AND IF YOU TALK ABOUT THESE GENERAL STARTUP OPTIONS --

12 A. THESE ARE STARTUP OPTIONS, THERE'S A NUMBER OF DIFFERENT
13 TYPES HERE. AND INDICATED BY EACH OF THE PADS ACROSS THE TOP
14 OF THE SCREEN, THE ONE THAT WE'RE CONCERNED WITH RIGHT HERE IS
15 THE LOWER BOX. IT SAYS, HOW DO YOU WANT IT? AND THEN IT SHOWS
16 A SIMPLE VIEW OF THE PROGRAM.

17 Q. OKAY, WE'LL GO THROUGH THAT SIMPLE VIEW. IN GENERAL WHAT
18 IS IT THAT THE ADVANCED OPTIONS ENABLE YOU TO DO IF YOU WERE TO
19 TAKE THE ADVANCED MODE?

20 A. GOING INTO THE ADVANCED MODE DISPLAYS MORE OF THE OPTIONS
21 THAT THE PROGRAM HAS. THERE ARE QUITE -- QUITE A BIT OF
22 COMPLEXITY THAT YOU CAN CONFIGURE IN TO ACCESS THE USERS HAVE
23 TO THE MACHINE THAT THE SERVER IS RUNNING ON.

24 IT ALSO ALLOWS YOU TO CONFIGURE PERSONAL MESSAGES TO
25 INDIVIDUAL USERS OR GROUPS OF USERS. IT WILL ALSO SHOW A

1 HISTORY OF SERVICE, STATISTICAL HISTORY OF THE FILE TRANSFERS
2 BASED ON AN OVERALL SYSTEM OR BY USER OR BY GROUP. THINGS LIKE
3 THAT WHICH ARE AVAILABLE IN THE ADVANCE OPTION.

4 Q. SO WHEN YOU PRESSED SIMPLE, DO YOU THEN GO TO THIS SCREEN?

5 A. YES. AFTER SELECTING THE SIMPLE OPTION, AND THEN SELECTED
6 THE USER MAINTENANCE CONFIGURATION MODE TO GET INTO THIS
7 SUBWINDOW THAT WILL ALLOW ME TO CONFIGURE AND CREATE USERS.

8 Q. DID YOU THEN CREATE A USER?

9 A. YES, I DID. YOU'LL NOTICE YOU CAN SEE UP ON THE LEFT SIDE
10 IN THE BOX THERE'S ONE USER THERE. THAT'S A DEFAULT USER. AND
11 THAT'S AN ANONYMOUS. THE TRADITION IN THE FILE TRANSFER
12 PROTOCOLS IS THAT PEOPLE ON OTHER COMPUTERS CAN LOG INTO AN FTP
13 IN AN ANONYMOUS MODE, AND THAT'S HOW YOUR INTERNET BROWSERS
14 ACCESS FILES AND DOWNLOAD FILES FOR YOU.

15 IN THIS PARTICULAR CASE ANONYMOUS IS DEFINED, BUT YOU
16 WILL NOTICE A BOX ABOVE IN WHICH THIS IS CHECKED THAT SHOWS
17 THAT'S DISABLED SO THAT THIS PARTICULAR FTP SERVER WILL NOT
18 ALLOW ANONYMOUS LOG-INS.

19 I THEN CHECKED THE ADD BUTTON AT THE BOTTOM AND GET A
20 BOX TO DEFINE THE NAME OF THE USER.

21 Q. AND IN THIS CASE YOU WROTE IN JIM?

22 A. CORRECT.

23 Q. AFTER YOU TYPE IN JIM AND CLICK OKAY, WHAT HAPPENS NEXT?

24 A. WE HAVE A PASSWORD BOX THAT APPEARS, SO WE ENTERED A
25 PASSWORD FOR JIM. AND IF YOU ENTER IT TWICE, YOU VERIFY THE

1 CORRECTNESS.

2 Q. SO YOU HAVE TO ADD A PASSWORD FOR THAT USER?

3 A. YES. .

4 Q. AND AFTER THAT HAPPENS, WHAT'S THE NEXT THING YOU SEE?

5 A. WE'RE BACK TO THE DEFINITION BOXES. AND IT SHOWS A USER
6 JIM WAS CREATED OVER ON THE LEFT SIDE. AND WE HAVE TWO
7 DIFFERENT TABS TO CHOOSE FROM AT THIS POINT. ONE IS SET TO
8 GENERAL SECURITY, WHICH ARE PRIMARILY CONCERNED WITH THE
9 PASSWORD, AND THE SECOND ONE IS A FILE ACCESS.

10 Q. SO DID YOU NEXT --

11 A. I CLICK ON THE FILE ACCESS. THAT BRINGS THIS WINDOW UP.

12 Q. AND WHAT DOES "FILE ACCESS" MEAN?

13 A. THE FILE ACCESS IS -- ITS PERMISSIONS ARE WHAT ACTIVITY ARE
14 ALLOWED BY AN OUTSIDE USER ON THIS PARTICULAR SERVER ON THE
15 MACHINE THAT IT'S RUNNING ON.

16 Q. AND DO YOU HAVE TO DEFINE THIS FOR EITHER EACH USER OR EACH
17 GROUP OF USERS?

18 A. YES, YOU DO.

19 Q. OKAY. AND THIS IS THE SCREEN THAT COMES UP?

20 A. THIS IS THE FIRST SCREEN THAT COMES UP SHOWING MY SELECTED
21 DEFAULT PERMISSIONS TO SHOW YOU WHAT'S CHECKED ON THE RIGHT.

22 Q. LET'S TALK ABOUT SOME OF THOSE SO THAT WE KNOW WHAT THE
23 OPTIONS ARE.

24 INITIALLY UNDER FILES IT SAYS "READ, WRITE, DELETE,
25 AND EXECUTE." WHAT IS THAT?

1 A. THOSE ARE THE DIFFERENT TYPES OF OPERATIONS YOU CAN DO ON A
2 FILE. YOU CAN EITHER READ THE FILE, WHICH MEANS YOU COPY IT
3 FROM WHERE IT IS ON THAT MACHINE. YOU CAN WRITE A FILE, WHICH
4 MEANS YOU CAN THEN TRANSFER DATA TO THE SERVER MACHINE AND THEN
5 ACTUALLY CREATE AND WRITE TO A FILE. THIS WILL ALSO WRITE
6 MODIFIED FILES, BUT IN THIS SENSE FILE TRANSFERS IS NOT
7 INVOLVED IN MODIFYING FILES.

8 THE DELETE WILL ALLOW YOU TO DELETE FILES ON THE
9 SERVER MACHINE. AND EXECUTE WILL ALLOW YOU TO EXECUTE THOSE,
10 BASICALLY RUN A PROGRAM FILE.

11 Q. SO "READ" IS WHEN SOMEONE IS DOWNLOADING WHEN ANOTHER USER
12 COPIES AN IMAGE FROM THE COMPUTER THAT'S RUNNING WAR-FTP. AND
13 "WRITE" IS WHEN ANOTHER USER SENDS AN IMAGE OR FILE TO THE
14 MACHINE THAT'S RUNNING WAR-FTP; IS THAT RIGHT?

15 A. THAT'S CORRECT. IT'S REFERRED TO AS DOWNLOAD, WHICH GOES
16 FROM THE SERVER MACHINE OR UPLOAD FROM A CLIENT MACHINE TO THE
17 SERVER MACHINE.

18 Q. AND WHAT ABOUT DIRECTORIES, WHAT DOES THAT MEAN?

19 A. UNDER THE DIRECTORIES SUB-BOX YOU CAN LIST DIRECTORIES,
20 CREATE OR REMOVE THEM. IN THIS CASE A LIST IS THE ONLY ONE
21 THAT'S POSSIBLE. AND WHAT THAT DOES IS IT ALLOWS YOU TO LOOK
22 AT THE ENTRIES WITHIN A DIRECTORY. IT'S RATHER LIKE LOOKING AT
23 A BOOKSHELF AND SEEING THE TITLES. AND YOU CAN SEE THE SIZE OF
24 A BOOK, LIKE YOU WOULD THE SIZE OF A FILE, BUT YOU CAN'T DO
25 ANYTHING WITH IT UNLESS ONE OF THE BOXES ABOVE THE READ, WRITE,

1 DELETE, OR EXECUTED IS ALSO CHECKED.

2 Q. SO DOES THAT MEAN IF A PERSON WERE ACCESSING A SYSTEM WITH
3 THIS CONFIGURATION THAT THEY WOULD BE ABLE TO COME IN AND LOOK
4 AT THE DIRECTORY LIST, SEE WHAT'S IN THE DIRECTORY THAT THEY
5 HAVE ACCESS TO?

6 A. YES. IN FACT, THE DEFAULTS FOR THE SYSTEM HERE ALLOW YOU
7 TO LIST ALL THE FILES ON A SYSTEM, BUT NOT DO ANYTHING WITH
8 THEM. YOU CAN'T READ THEM, WRITE THEM, EXECUTE THEM.

9 Q. AND "READ" AGAIN MEANS DOWNLOAD?

10 A. CORRECT.

11 Q. OKAY. AND THEN THERE ARE ADDITIONAL SPECIALIZED FUNCTIONS;
12 IS THAT RIGHT?

13 A. YES. DOWN AT THE BOTTOM OF THE SPECIAL CHECKS WHICH HAVE
14 TO DO WITH MORE ADVANCE FEATURES AND OPERATIONS THAT YOU MIGHT
15 WANT TO PERMIT OR DENY.

16 Q. OKAY. AND THEN WHAT IS THIS NEXT SCREEN THAT YOU HAVE
17 BROUGHT UP?

18 A. IN ORDER TO BE ABLE TO REALLY UTILIZE THIS PROGRAM, YOU'LL
19 HAVE -- YOU HAVE TO SPECIFY DIRECTORIES THAT YOU WANT TO GIVE
20 THE USER ACCESS TO. IN THIS CASE I HAD CREATED THREE
21 DIRECTORIES ON A "D" DRIVE. I SELECTED THE "D" DRIVE IN THE
22 LOWER RIGHT-HAND CORNER OF THAT WINDOW. AND THE SYSTEM
23 DISPLAYED THE POSSIBLE DIRECTORIES TO CHOOSE FROM. THE FIRST
24 THREE DIRECTORIES ARE ONES THAT I CREATED. THE RECYCLE
25 DIRECTORY IS A SYSTEM DIRECTORY.

1 Q. NOW, WHEN YOU ARE SELECTING A DIRECTORY HERE IN THIS
2 SCREEN, ARE YOU SELECTING A DIRECTORY THAT THE PERSON, THE USER
3 YOU JUST CREATED IS GOING TO HAVE ACCESS TO?

4 A. YES, THAT'S CORRECT.

5 Q. AND THEN THIS NEXT SCREEN, WHAT DOES THAT SHOW US?

6 A. OKAY. THIS NEXT SCREEN I SELECTED THE DIRECTORY FOR JIM R.
7 ONLY. AND THAT'S AN ABBREVIATION FOR READ ONLY. I WANTED TO
8 ALLOW THE USER JIM TO READ FROM THAT DIRECTORY, BUT NOT DO
9 ANYTHING ELSE WITH IT.

10 Q. AND, AGAIN, READ FROM IT MEANS TO COPY FILES, BUT NOT TO BE
11 ABLE TO ADD FILES?

12 A. CORRECT. SO I SELECTED THAT, AND THEN YOU CLICK "OKAY" AND
13 YOU SHOULD GO TO THE NEXT SCREEN, WHICH NOW SHOWS THAT
14 PARTICULAR PATH OR DIRECTORY IN THE LIST OF PATH NAMES.

15 Q. NOW, AS THEY FIRST DEFINE IT, YOU'LL FIND THAT THE CHECK
16 MARKS ARE ON THE RIGHT SIDE ARE THE SAME AS THE DEFAULTS.

17 A. YOU WILL HAVE TO MODIFY THOSE ACCORDING TO THE PERMISSION
18 THAT YOU WANT TO GRANT THE USER FOR THAT DIRECTORY.

19 Q. SO THEN DO YOU GO TO THIS NEXT SCREEN TO DO THAT?

20 A. YES. ON THE NEXT SCREEN YOU WILL SEE THAT I HAVE MADE A
21 CHECK MARK IN THE READ BOX, AND I HAVE BLANKED OUT THE RIGHT
22 DELETE AND EXECUTED BOXES.

23 Q. SO NOW WHAT DOES THIS ENABLE THIS JIM USER THAT YOU JUST
24 CREATED TO BE ABLE TO DO?

25 A. AT THIS POINT JIM WILL BE ABLE TO READ OR COPY FILES FROM

1 THIS DIRECTORY AS WELL AS THE GENERAL PERMISSIONS WHICH ALLOW
2 HIM TO LIST ALL THE FILES ON THE COMPUTER.

3 Q. OKAY. .IN THE SIMPLE MODE, NOW THAT YOU HAVE CREATED A USER
4 AND IDENTIFIED THE DIRECTORIES THAT HE OR SHE COULD GO INTO AND
5 SET THE CHARACTERISTICS OF WHAT THIS PERSON CAN DO IN THIS CASE
6 COPY ONLY, WHAT HAPPENS NEXT?

7 A. WELL, NEXT WE -- YOU CAN GET OUT AND WAIT FOR JIM TO LOG
8 IN.

9 Q. SO THIS IS THE SCREEN THAT SHOWS YOU NOW HAVE CREATED JIM
10 AS A USER?

11 A. YES.

12 Q. NOW, DOES THAT INFORMATION SHOW UP AT THE BOTTOM OF THE
13 SCREEN?

14 A. YES. YOU'LL SEE IN THE -- THIS PARTICULAR BOX SHOWS THE
15 EVENTS IN A REVERSE ORDER. SO YOU'D READ THEM FROM THE BOTTOM
16 UP.

17 Q. THE EARLIEST ENTRY IS IN THE BOTTOM?

18 A. CORRECT. YOU'LL START OUT -- YOU'LL SEE 8. YOU'LL SEE AT
19 120. AND IT'S 2300 HOURS, 12 MINUTES WHEN THE PROGRAM STARTED.
20 TO A MINUTE LATER I CREATED JIM, AND THEN 19 MINUTES AFTER THE
21 HOUR IS THE ENTRY FOR WHEN I PUT THE WAR-FTP PROGRAM ONLINE.

22 NOW. WHEN YOU GO ONLINE IS WHEN THE PROGRAM THEN
23 MAKES ITSELF AVAILABLE TO USERS FROM OUTSIDE THE COMPUTER.

24 Q. SO NOW YOU'VE MADE THIS YOUR FTP SYSTEM AVAILABLE TO JIM?

25 A. CORRECT.

1 Q. DOES HE THEN LOG IN?

2 A. THE NEXT SCREEN SHOWS WHERE JIM LOGGED IN. IN ORDER FOR
3 JIM ON ANOTHER COMPUTER TO LOG INTO THIS PARTICULAR SERVER, JIM
4 WOULD HAVE TO KNOW THE IP ADDRESS, WHICH IS THE INTERNET
5 PROTOCOL ADDRESS FOR THIS PARTICULAR MACHINE.

6 Q. WOULD HE ALSO HAVE TO KNOW THE CORRECT PORT THAT YOU ARE
7 RUNNING IT ON?

8 A. NO, NOT IN THIS CASE.

9 Q. OKAY. WOULD HE HAVE TO KNOW THE PASSWORD?

10 A. YES. SO WHEN JIM IS GOING TO LOG IN WITH HIS CLIENT FILE
11 TRANSFER SERVER OR CLIENT, HE WILL HAVE TO SPECIFY A USER NAME
12 AND A PASSWORD IN ORDER TO LOG INTO THIS SERVER -- IN ORDER TO
13 GET TO THE SERVER ON MY MACHINE HE HAS TO KNOW THE IP ADDRESS.
14 SOMETIMES THAT'S FIXED AND SOMETIMES THAT'S CHANGING. DEPENDS
15 ON THE TYPE OF INTERNET SERVICE PROVIDER OR CONNECTION.

16 Q. AND IS ONE OF THE SPECIALTY OPTIONS THAT CAN BE MODIFIED,
17 ALTHOUGH IT'S NOT IN THIS CASE, THE PORT THROUGH WHICH HE MUST
18 ENTER?

19 A. THAT I'M NOT FAMILIAR WITH.

20 Q. OKAY. NOW, WHEN THE LOG -- ONCE AGAIN, THIS IS THE BOTTOM
21 OF THE SAME SCREEN -- DOES THE LATEST ENTRY THEN SHOW THAT JIM
22 HAS ENTERED FROM THIS IP ADDRESS?

23 A. THAT'S CORRECT.

24 Q. AND IS THAT THE IP ADDRESS THAT THE PERSON LOGGING IN AS
25 JIM WAS ACTUALLY USING?

1 A. THAT'S CORRECT.

2 Q. NOW, IN YOUR EXAMPLE, WHAT HAPPENS NEXT?

3 A. AT THIS TIME I STARTED JIM DOWNLOADING THE FILE, AND I SHOW
4 THE CURRENT STATUS FOR JIM IN THE LARGE WINDOW IS DOWNLOAD. IN
5 THE LOWER LOG WINDOW IT MAKES AN ENTRY SHOWING THAT JIM IS
6 DOWNLOADING OR DATA IS BEING SENT THAT THIS PARTICULAR FILE
7 TEST.JPG IS BEING SENT TO JIM.

8 Q. OKAY. SO THAT SHOWS THAT A FILE IS BEING SENT?

9 A. CORRECT. DOWN IN THE LOWER CORNER HERE YOU SEE SOME STATUS
10 ITEMS 1 OF 50 USERS. IT CAN HANDLE 50 USERS IN THIS PARTICULAR
11 CONFIGURATION. AND ONE FILE TRANSFER IS IN PROGRESS.

12 Q. NOW, LET ME ASK YOU THIS. AT THE TOP OF THIS SCREEN WE
13 SEE THESE THREE NOTATIONS.

14 A. UM-HUM.

15 Q. DOES THAT MAKE IT POSSIBLE FOR THE PERSON WHO'S RUNNING THE
16 FTP SERVER TO EITHER VIEW THIS IN A BIG SCREEN OR TO PUT IT
17 DOWN SO HE JUST SEES IT ON THE BAR AT THE BOTTOM?

18 A. THAT'S CORRECT, YES.

19 Q. OKAY. SO THIS HERE SHOWS THAT -- DOES IT SHOW THAT THE
20 FILE HAS -- IS IN THE PROCESS OF BEING SENT, IT HAS STARTED TO
21 BE SENT?

22 A. THAT'S CORRECT.

23 Q. AND IS THE NEXT SCREEN THAT YOU SEE THIS ONE?

24 A. YES. AFTER THE FILE TRANSFER IS COMPLETE, THE FILE HAS
25 BEEN SENT OUT TO THE USER JIM, YOU GET ANOTHER ENTRY IN THE LOG

1 WHICH SHOWS THAT THE FILE WAS SENT SUCCESSFULLY, PROVIDES THE
2 SIZE OF THE FILE AND A TRANSFER RATE.

3 ON THE UPPER SCREEN BEFORE WE GO DOWN IT SAYS "IDLE."
4 AT THIS POINT THE USER JIM IS LOGGED IN, BUT NOTHING IS
5 HAPPENING WITH THE CONNECTION TO HIM.

6 Q. AND THAT'S WHAT "IDLE" MEANS?

7 A. CORRECT.

8 Q. ALL RIGHT. LET'S LOOK AT THAT TOP LINE. IT GIVES THE TIME
9 AGAIN?

10 A. YES.

11 Q. AND THEN THE USER NUMBER?

12 A. YES.

13 Q. AND DOES THAT USER NUMBER STAY THE SAME AS LONG AS JIM IS
14 IN THIS SESSION?

15 A. THAT WILL STAY THE SAME AS LONG AS THIS PARTICULAR INSTANCE
16 OF JIM OR THIS PARTICULAR LOG ON OF JIM STAYS THE SAME.

17 Q. SO IF JIM WERE TO LOG OFF AND COME BACK, WOULD HE GET A NEW
18 USER NO.?

19 A. YES, I BELIEVE HE WOULD. ALSO JIM CAN LOG ON A SECOND
20 TIME. YOU CAN DO MULTIPLE FILE TRANSFERS AT THE SAME TIME.
21 YOU CAN HAVE JIM WITH A USER I.D., ONE USER I.D. OR TWO OR
22 THREE.

23 Q. ALL USING THE SAME IP ADDRESS?

24 A. CORRECT.

25 Q. OKAY. FOLLOWING THIS LINE ACROSS, IT THEN STATES THAT THE

1 IMAGE THAT HAD BEEN TEST, TEST.JPG, HAS NOW BEEN SENT
2 SUCCESSFULLY?

3 A. THAT IS CORRECT.

4 Q. AND, IN FACT, WHEN YOU WERE DOING THIS DID THE INDIVIDUAL
5 WHO WAS USING THE JIM COMPUTER, IF YOU WILL, DID HE ACTUALLY
6 RECEIVE THE TEST.JPG?

7 A. YES. I ACTUALLY DID. THE COMPUTERS WERE SET UP SIDE BY
8 SIDE.

9 Q. AND THEN GOING ON DOWN, WHAT IS THE SIZE, AND THEN IS THAT
10 KILOBYTES PER SECOND?

11 A. THAT'S CORRECT.

12 Q. WHAT DOES THAT MEAN?

13 A. WE HAVE THE SIZE OF THE FILE AND THE KILOBYTES PER SECOND
14 IS THE MEASURE OF THE SPEED OF THE TRANSFER BETWEEN THE TWO
15 COMPUTERS.

16 Q. AND IS THAT SIZE OF THE FILE ACCURATE?

17 A. IT IS.

18 Q. SO YOU HAD A FILE ON YOUR COMPUTER, AND WHAT IT WAS ON YOUR
19 COMPUTER DID IT SHOW THAT IT WAS 42,507 BYTES?

20 A. IT IS.

21 Q. AND THEN THIS TRANSMISSION FTP LOG SHOWS THAT IT WAS
22 SENDING A FILE OF THAT NAME AND THAT SIZE; IS THAT CORRECT?

23 A. YES.

24 Q. AND THEN DID A FILE WITH THAT NAME AND THAT EXACT SIZE SHOW
25 UP ON THE COMPUTER THAT WAS CALLED JIM?

1 A. YES, IT DID.

2 Q. AND IT WAS, IN FACT, THE SAME DOCUMENT?

3 A. YES, IT WAS.

4 Q. AND THEN IF JIM WERE TO LEAVE, HE'S GOTTEN ENOUGH. IS THIS
5 WHAT HAPPENS?

6 A. OKAY. WHEN THE USER JIM DECIDED HE WANTED TO DISCONNECT
7 FROM THE SERVER, HE EXECUTED THAT COMMAND ON HIS CLIENT
8 MACHINE, AND HE LOGGED OUT FROM THE USER. AN ENTRY IS MADE IN
9 THE LOG PORTION, AND YOU'LL SEE THAT THERE'S NO USERS NOW
10 LISTED IN THE STATUS SCREEN.

11 Q. SO THERE'S NO USERS UP HERE?

12 A. CORRECT.

13 Q. AND IF WE GO DOWN TO THE LANGUAGE IT SAYS THAT HE'S LEFT IN
14 THE TOP LINE; IS THAT CORRECT?

15 A. THAT'S RIGHT.

16 Q. AND IN THIS CASE DID YOU THEN TURN YOUR COMPUTER OFF OR
17 TURN THE WAR-FTP PROGRAM OFF ON THE COMPUTER THAT WAS RUNNING
18 IT?

19 A. YES. AT THIS POINT I TOOK THE WAR-FTP PROGRAM OFF LINE.
20 IT'S ONE OF THE COMMANDS YOU CAN USE. IT LEAVES IT RUNNING ON
21 THE COMPUTER, BUT IT DISCONNECTS IT FROM THE OUTSIDE WORLD, AND
22 IT ALSO MAKES A LOG ENTRY THAT SHOWS IT'S GOING OFFLINE AND
23 SEVERS ANY CONNECTIONS THAT WERE ACTIVE.

24 Q. THAT TOP LINE AGAIN, "GOING OFFLINE ANY CONNECTION WILL BE
25 CLOSED"?

1 A. THAT'S CORRECT.

2 Q. AND DID THIS THEN CREATE -- DID THE TRANSACTION THAT YOU
3 JUST CONDUCTED OR SHOWED US WHAT YOU CONDUCTED, DID THAT THEN
4 CREATE A LOG IN THE WAR-FTP COMPUTER?

5 A. YES, IT DID.

6 Q. AND IS IT -- WAS IT A LOG THAT'S SET FORTH EXACTLY THE
7 INFORMATION THAT IS SHOWN AT THE BOTTOM OF THIS SCREEN THAT WE
8 KEPT TALKING ABOUT?

9 A. YES, IT WAS.

10 Q. AND WHEN YOU LOOKED AT IT, IS IT SIMILAR IN FORM TO THE ONE
11 THAT YOU HAVE SITTING IN FRONT OF YOU, GOVERNMENT'S 114?

12 A. YES, IT IS.

13 Q. NOW, DID YOU ALSO FIND ON THE DEFENDANT'S COMPUTER --
14 ACTUALLY LET'S GO THROUGH THIS.

15 MS. MAJOR: YOUR HONOR, AT THIS TIME THE GOVERNMENT
16 IS GOING TO GO THROUGH SOME SPECIFIC TRANSACTIONS FROM THE FTP
17 LOG. LAST TIME WHEN I TRIED TO SHOW THEM ON ELMO, THE JURORS
18 HAD TROUBLE SEEING THEM. I HAVE MADE COPIES OF THE PAGES I'M
19 REFERRING TO IF I COULD HAND THOSE OUT.

20 THE COURT: OKAY. HOW MANY PAGES ARE THERE?

21 MS. MAJOR: THERE'S ABOUT -- IT'S ABOUT 30.

22 THE COURT: PER PACKET -- SO YOU HAVE A PACKET FOR
23 EACH JUROR?

24 MS. MAJOR: I HAVE A PACKET FOR EACH JUROR. WHAT I
25 HAVE IS THE FIRST PAGE. EVERYONE TAKES ONE OF THE FIRST PAGE